

Joint Option Form

[From the Employees who were in service prior to 01.09.2014 and continued to be in service on or after 01.09.2014 but could not exercise joint option under erstwhile proviso to para 11(3) of EPS-1995]

To be exercised by eligible members of EPS-1995 on or before 26th June, 2023 in accordance with para 44(iv) read with Para 44(v) of the order dated 4.11.2022 of the Hon’ble Supreme Court in SLP No. 8658-8659 of 2019

DISCLAIMER

I have gone through Supreme Court Judgement dated 04.11.2022 in SLP (c) No. 8658-8659 of 2019 and I am registering the application in terms of directions contained in the said judgement. I undertake that the pension will be calculated subject to formula determined under the Scheme.

Place : ROPAR  
Date : 20/09/2023

| Sl.No | Details                                                                                                                                                                                                                                     |                       |                     |                     |                     |                     |
|-------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------|---------------------|---------------------|---------------------|---------------------|
| 1     | UAN                                                                                                                                                                                                                                         |                       |                     |                     | 100390287165        |                     |
| 2     | Name of Member                                                                                                                                                                                                                              |                       |                     |                     | TEJINDER SINGH BAWA |                     |
| 3     | Gender                                                                                                                                                                                                                                      |                       |                     |                     | Male                |                     |
| 4     | Date of Birth of Member                                                                                                                                                                                                                     |                       |                     |                     | 06-DEC-1961         |                     |
| 5     | Father's / Spouse Name                                                                                                                                                                                                                      |                       |                     |                     | NARINDER SINGH BAWA |                     |
| 6     | PPO No.                                                                                                                                                                                                                                     |                       |                     |                     | PBCHD00050300       |                     |
| 7     | PPO Date                                                                                                                                                                                                                                    |                       |                     |                     | 20-MAY-2022         |                     |
| 8     | Office by which the PPO was issued                                                                                                                                                                                                          |                       |                     |                     | CHANDIGARH          |                     |
| 9     | Service Details                                                                                                                                                                                                                             |                       |                     |                     |                     |                     |
|       | PF Account Number                                                                                                                                                                                                                           | Establishment Name    | Date of joining FPS | Date of leaving FPS | Date of joining EPS | Date of leaving EPS |
| 9.1   | PBCHD00060480000020408                                                                                                                                                                                                                      | NATIONAL INSTITUTE OF | Not Available       | Not Available       | 01-OCT-2017         | 05-DEC-2019         |
| 10    | Whether employer's contribution was received on wages exceeding statutory wage ceiling of R.s 5000 in EPF prior to 01.06.2001 from the day his salary exceeded R.s 5000?<br><br>(applicable only if date of joining is prior to 01.06.2001) |                       |                     |                     | Yes                 |                     |
| 11    | Whether Employer's contribution was received on wages exceeding statutory wage ceiling of R.s 6500 in EPF prior to 01.09.2014 from the day his salary exceeded R.s 6500?<br><br>(applicable only if date of exit is on or after 01.06.2001) |                       |                     |                     | Yes                 |                     |
| 12    | Aadhaar No. of Member                                                                                                                                                                                                                       |                       |                     |                     | XXXX XXXX 0918      |                     |
| 13    | Aadhaar linked Mobile No. of member                                                                                                                                                                                                         |                       |                     |                     | 9464088018          |                     |
| 14    | Email ID of member                                                                                                                                                                                                                          |                       |                     |                     | TS_BAWA@YAHOO.COM   |                     |
| 15    | Aadhaar linked Bank Account No.                                                                                                                                                                                                             |                       |                     |                     | 0087000111135009    |                     |
| 16    | IFS Code                                                                                                                                                                                                                                    |                       |                     |                     | PUNB0008700         |                     |
| 17    | Whether member wants to use accumulation available in his / her PF account for payment of due contribution for this joint option?                                                                                                           |                       |                     |                     | No                  |                     |
| 18    | How much is the PF account balance on the date of filing option?<br><br>Please upload relevant documentary proof such as Account Slip / pages of the Passbook etc.                                                                          |                       |                     |                     | Rs. 0               |                     |
| 19    | Whether member is giving undertaking to deposit the contributions along with interest due till date of payment through his last employer [only when PF account has no/ insufficient balance]?                                               |                       |                     |                     | Yes                 |                     |

**Declaration:**

1. I hereby declare that I have read and understood the Judgement in SLP (c) no.8658-8659 of 2019 dated 04-11-2022 of the Hon'ble Supreme Court and I am exercising this joint option in terms of the directions contained in the said judgement.
2. I understand and agree that as a member of the Employees' Pension Scheme, my rights to claim pension are limited to the scope of judgement and within the EPF & MP Act, 1952 and the Schemes framed thereunder.
3. I further understand that the Central Government is empowered to amend the scheme as it may deem fit.
4. I do hereby agree that the details of contribution and interest given by my employers are essential for the computation of dues payable for this application, and this is the full and final submission.
5. I hereby undertake that the service details in the above form are correct and no material fact has been misrepresented or hidden by me.
6. I hereby agree to pay due contribution in a single tranche as specified by EPFO, along with interest at rates declared under Para 60 of EPF Scheme 1952 or at the rate declared by the concerned trust of such establishment, from time to time, whichever is higher, if any.
7. I hereby jointly opt along with my employer to pay full amount of contribution on salary exceeding wage ceiling under erstwhile para 11(3) (since deleted) and para 11(4) of EPS 95 along with interest upto the last date of the month in which payment is made, in accordance with the judgement dated 04.11.2022 of the Hon'ble Supreme Court through my last employer **within such period as may be directed by EPFO after verification of my joint option**. If the full amount payable is not deposited by my last employer **within such period as may be directed by EPFO after verification of my joint option**, this joint option shall be liable to be treated as Null and Void.
8. I undertake that all the facts are true. If the details submitted by me or my employer are found to be incorrect at any point of time, this joint option shall be treated as Null and Void.
9. I am aware that in case of false declaration and wilful mis-representation, appropriate penal action may be taken by EPFO against me.

Place : ROPAR  
Date : 20/09/2023

TEJINDER SINGH BAWA  


Declaration by Employer

| Sr.No | Wage Month (all the months from date of joining to date of leaving) | Wages on which PF contribution was paid | Pension Contribution from employer @ 8.33% due on such Wages as in column 2 | Pension Contribution from employee @ 1.16% due on such wages with effect from 01.09.2014 | Pension Contribution Paid by the employer | Pension Contribution to be paid along with interest | Yearly PF Interest rate for PF exempt establishments |
|-------|---------------------------------------------------------------------|-----------------------------------------|-----------------------------------------------------------------------------|------------------------------------------------------------------------------------------|-------------------------------------------|-----------------------------------------------------|------------------------------------------------------|
| 1     | OCT-2017                                                            | 154350                                  | 12857                                                                       | 1616                                                                                     | 1250                                      | 11607                                               | 0                                                    |
| 2     | NOV-2017                                                            | 154350                                  | 12857                                                                       | 1616                                                                                     | 1250                                      | 11607                                               | 0                                                    |
| 3     | DEC-2017                                                            | 154350                                  | 12857                                                                       | 1616                                                                                     | 1250                                      | 11607                                               | 0                                                    |
| 4     | JAN-2018                                                            | 154350                                  | 12857                                                                       | 1616                                                                                     | 1250                                      | 11607                                               | 0                                                    |
| 5     | FEB-2018                                                            | 154350                                  | 12857                                                                       | 1616                                                                                     | 1250                                      | 11607                                               | 0                                                    |
| 6     | MAR-2018                                                            | 154350                                  | 12857                                                                       | 1616                                                                                     | 1250                                      | 11607                                               | 0                                                    |
| 7     | APR-2018                                                            | 166110                                  | 13837                                                                       | 1753                                                                                     | 1250                                      | 12587                                               | 0                                                    |
| 8     | MAY-2018                                                            | 157290                                  | 13102                                                                       | 1651                                                                                     | 1250                                      | 11852                                               | 0                                                    |
| 9     | JUN-2018                                                            | 157290                                  | 13102                                                                       | 1651                                                                                     | 1250                                      | 11852                                               | 0                                                    |
| 10    | JUL-2018                                                            | 161998                                  | 13494                                                                       | 1705                                                                                     | 1250                                      | 12244                                               | 0                                                    |
| 11    | AUG-2018                                                            | 161998                                  | 13494                                                                       | 1705                                                                                     | 1250                                      | 12244                                               | 0                                                    |
| 12    | SEP-2018                                                            | 171082                                  | 14251                                                                       | 1811                                                                                     | 1250                                      | 13001                                               | 0                                                    |
| 13    | OCT-2018                                                            | 165026                                  | 13747                                                                       | 1740                                                                                     | 1250                                      | 12497                                               | 0                                                    |
| 14    | NOV-2018                                                            | 165026                                  | 13747                                                                       | 1740                                                                                     | 1250                                      | 12497                                               | 0                                                    |
| 15    | DEC-2018                                                            | 165026                                  | 13747                                                                       | 1740                                                                                     | 1250                                      | 12497                                               | 0                                                    |
| 16    | JAN-2019                                                            | 165026                                  | 13747                                                                       | 1740                                                                                     | 1250                                      | 12497                                               | 0                                                    |
| 17    | FEB-2019                                                            | 165026                                  | 13747                                                                       | 1740                                                                                     | 1250                                      | 12497                                               | 0                                                    |
| 18    | MAR-2019                                                            | 165026                                  | 13747                                                                       | 1740                                                                                     | 1250                                      | 12497                                               | 0                                                    |
| 19    | APR-2019                                                            | 183194                                  | 15260                                                                       | 1951                                                                                     | 1250                                      | 14010                                               | 0                                                    |
| 20    | MAY-2019                                                            | 169568                                  | 14125                                                                       | 1793                                                                                     | 1250                                      | 12875                                               | 0                                                    |
| 21    | JUN-2019                                                            | 169568                                  | 14125                                                                       | 1793                                                                                     | 1250                                      | 12875                                               | 0                                                    |
| 22    | JUL-2019                                                            | 174608                                  | 14545                                                                       | 1851                                                                                     | 1250                                      | 13295                                               | 0                                                    |
| 23    | AUG-2019                                                            | 174608                                  | 14545                                                                       | 1851                                                                                     | 1250                                      | 13295                                               | 0                                                    |
| 24    | SEP-2019                                                            | 174608                                  | 14545                                                                       | 1851                                                                                     | 1250                                      | 13295                                               | 0                                                    |
| 25    | OCT-2019                                                            | 205788                                  | 17142                                                                       | 2213                                                                                     | 1250                                      | 15892                                               | 0                                                    |
| 26    | NOV-2019                                                            | 182403                                  | 15194                                                                       | 1942                                                                                     | 1250                                      | 13944                                               | 0                                                    |
| 27    | DEC-2019                                                            | 182403                                  | 15194                                                                       | 1942                                                                                     | 1250                                      | 13944                                               | 0                                                    |

1. I have verified and hereby certify that the details provided herein above in the Joint Option Form by the aforesaid employee are true and correct.
2. I hereby certify and declare that the details submitted by me for due calculations relating to wages, contribution due, contribution paid and yearly PF interest rate (for exempted establishment) are correct and if any misrepresentation is found, this joint option shall be treated as null and void. If so required, I will be ready to get these details verified by EPFO.
3. I hereby declare that I jointly opt with my aforesaid ex-/employee to contribute on salary exceeding the wage ceiling under para 11(4) (post-amendment), of EPS-1995 in accordance with the judgment of Hon'ble Supreme Court.
4. I hereby undertake that if any of the details given as above are found to be false, this joint option shall be deemed to be rejected.

5. I am aware that in case of false declaration and wilful mis-representation, appropriate penal action may be taken by EPFO against me.

Place : RUPNAGAR

Date : 20/09/2023

Authorized Signatory

JITENDRA KUMAR

**राष्ट्रीय इलेक्ट्रॉनिक्स एवं सूचना प्रौद्योगिकी संस्थान (रा.इ.सू.प्रौ.सं.) चंडीगढ़**  
**National Institute of Electronics and Information Technology (NIELIT), Chandigarh**  
(इलेक्ट्रॉनिक्स एवं सूचना प्रौद्योगिकी मंत्रालय, भारत सरकार की स्वायत्त वैज्ञानिक संस्था)  
(An Autonomous Scientific Society of Ministry of Electronics and Information Technology, Govt. of India)  
**Birla Farms, Bada Phull, Rupnagar, Punjab - 140001.**  
Chandigarh Facility:-IETE Building, Plot No. M-925, Sector 30B, Chandigarh -160030

No.: NIELIT/CH/ACCT/RPFC-CORRES/50/2023/ 2154

Dated: 10.05.2023

**CERTIFICATE IN LIEU OF JOINT OPTION UNDER PARA 26(6) OF THE EPF ACT, 1952**

This certificate is being issued for the employees of National Institute of Electronics & Information Technology, Chandigarh (NIELIT Chandigarh) (Establishment Id: PBCHD0006048000)

NIELIT Chandigarh is contributing EPF on higher /actual wages (Full basic + DA) along with applicable administration charges since the applicability of EPF scheme, 1952.

Therefore, the EPF contribution of employees in A/C 01 (Employee Share) is/was deposited over and above the EPF wage ceiling, as and when the EPF wage ceiling was enhanced from time to time by the EPF Department or as and when the concerned employee crossed the wage ceiling as fixed by the EPF department from time to time.

However, with regard to EPS, 1995 NIELIT Chandigarh has contributed/is contributing to EPS 1995 (Pension Account) @ 8.33% of wage ceiling as applicable from time to time and the rest amount {(Employee Share A/C 01) (calculated on higher /actual wages) minus Pension Amount (A/C. 10)} is/was being deposited to Employer share (A/C 01) of EPF A/C.

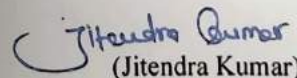
As per amendments from time to time by EPFO, this establishment has continued to deduct the contribution of its employees on full wages as applicable from time to time. EPFO well versed with the facts that the contributions, including the administrative charges, deposited on higher wages/salary through software developed by EPFO.

Keeping in view all the above-mentioned facts, this certificate be deemed as approval of EPFO under 26(6) of the EPF Scheme, so that verdict dated 04.11.2022 of the Hon'ble Supreme Court be implemented in its true spirit.



(Arvind Rawat)  
Joint Director (Admin)

Place: Rupnagar



(Jitendra Kumar)  
Assistant Director (Finance)

Assistant Director (Finance)  
NIELIT, Chandigarh.

मुख्यालय : नाइलिट भवन, प्लॉट नंबर ३, पीएसपी पॉकेट, सेक्टर - ८, द्वारका, नई दिल्ली - 110077

HQs : NIELIT Bhawan, Plot No. 3, PSP Pocket, Sector 8, Dwarka, New Delhi - 110 077.

Helpline No. (Toll Free)-1800116511, Phone- 91-11-25308300

दूरभाष/Phone: Ropar Reception- 01881-257005

Chandigarh Reception- 0172-2650121

ईमेल/Email: contact@nielit.gov.in

वेबसाइट/Website: <http://www.nielit.gov.in/>

ईमेल/Email: dlr-chandigarh@nielit.gov.in

वेबसाइट/Website: <http://www.nielit.gov.in/chandigarh>

**राष्ट्रीय इलेक्ट्रॉनिक्स एवं सूचना प्रौद्योगिकी संस्थान (रा.इ.सू.प्रौ.सं.) चंडीगढ़**  
**National Institute of Electronics and Information Technology (NIELIT), Chandigarh**  
(इलेक्ट्रॉनिक्स एवं सूचना प्रौद्योगिकी मंत्रालय, भारत सरकार की स्वायत्त वैज्ञानिक संस्था)  
(An Autonomous Scientific Society of Ministry of Electronics and Information Technology, Govt. of India)  
**Birla Farms, Bada Phull, Rupnagar, Punjab - 140001.**  
Chandigarh Facility:-IETE Building, Plot No. M-925, Sector 30B, Chandigarh -160030

No.: NIELIT/CH/ACCT/RPFC-CORRES/50/2023/ 2154

Dated: 10.05.2023

**CERTIFICATE IN LIEU OF JOINT OPTION UNDER PARA 26(6) OF THE EPF ACT, 1952**

This certificate is being issued for the employees of National Institute of Electronics & Information Technology, Chandigarh (NIELIT Chandigarh) (Establishment Id: PBCHD0006048000)

NIELIT Chandigarh is contributing EPF on higher /actual wages (Full basic + DA) along with applicable administration charges since the applicability of EPF scheme, 1952.

Therefore, the EPF contribution of employees in A/C 01 (Employee Share) is/was deposited over and above the EPF wage ceiling, as and when the EPF wage ceiling was enhanced from time to time by the EPF Department or as and when the concerned employee crossed the wage ceiling as fixed by the EPF department from time to time.

However, with regard to EPS, 1995 NIELIT Chandigarh has contributed/is contributing to EPS 1995 (Pension Account) @ 8.33% of wage ceiling as applicable from time to time and the rest amount {(Employee Share A/C 01) (calculated on higher /actual wages) minus Pension Amount (A/C. 10)} is/was being deposited to Employer share (A/C 01) of EPF A/C.

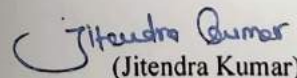
As per amendments from time to time by EPFO, this establishment has continued to deduct the contribution of its employees on full wages as applicable from time to time. EPFO well versed with the facts that the contributions, including the administrative charges, deposited on higher wages/salary through software developed by EPFO.

Keeping in view all the above-mentioned facts, this certificate be deemed as approval of EPFO under 26(6) of the EPF Scheme, so that verdict dated 04.11.2022 of the Hon'ble Supreme Court be implemented in its true spirit.



(Arvind Rawat)  
Joint Director (Admin)

Place: Rupnagar



(Jitendra Kumar)  
Assistant Director (Finance)

Assistant Director (Finance)  
NIELIT, Chandigarh.

मुख्यालय : नाइलिट भवन, प्लॉट नंबर ३, पीएसपी पॉकेट, सेक्टर - ८, द्वारका, नई दिल्ली - 110077

HQs : NIELIT Bhawan, Plot No. 3, PSP Pocket, Sector 8, Dwarka, New Delhi - 110 077.

Helpline No. (Toll Free)-1800116511, Phone- 91-11-25308300

दूरभाष/Phone: Ropar Reception- 01881-257005

Chandigarh Reception- 0172-2650121

ईमेल/Email: contact@nielit.gov.in

वेबसाइट/Website: <http://www.nielit.gov.in/>

ईमेल/Email: dlr-chandigarh@nielit.gov.in

वेबसाइट/Website: <http://www.nielit.gov.in/chandigarh>

# UNDERTAKING

I TEJINDER SINGH BAWA S/O Shri NARINDER SINGH BAWA

bearing PF A/C No. PB/CHD/0006048/0000020408

resident of House No 1070, Sector 18C, Chandigarh - 160018

Pursuit of my request for revision of pension I hereby undertake to pay amount becomes payable to me on account of differential amount EPF & Pension A/C as per honorable Supreme Court Judgment dated 04.11.2022 for revision of Pension on higher wages if my PF Account has no/insufficient balance.



Signature

Place: CHANDIGARH

Date: 21/04/2023

Adhaar No: 505476580918

Name: TEJINDER SINGH BAWA

Mobile: 9464088018